

1.

CASE #	CASE NAME	HEARING NAME
CVSW2403047	OSTHEIMER VS CITY OF WILDOMAR, A PUBLIC ENTITY	MOTION TO COMPEL

Tentative Ruling: Motion is granted in Part. Raw data to be turned over to Plaintiff's Counsel after the examination. Plaintiff may record the entire examination himself. Denied as to presence of Plaintiff's representative to be present. Sanctions denied.

Absent a stipulation, a court order is required for a mental examination. (CCP § 2032.310(a).) Such order may be made only after notice and hearing, and for good cause shown. (CCP §§ 2032.310, 2032.320(a).) Notice and hearing are deemed essential to protect against unreasonable examinations and to safeguard the examinee's bodily and mental privacy and other constitutional rights. (*Reuter v. Superior Court* (1979) 93 Cal.App.3d 332, 343.)

In cases of a mental exam, only a licensed physician or a licensed clinical psychologist who holds a doctoral degree in psychology and has had a least five years of postgraduate experience in the diagnosis of emotional and mental disorders, may perform the exam. (CCP § 2032.020(c)(1).) The motion must specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty of the person(s) performing the exam. (*Id.* at § 2032.310(b).) The order issued by the court must "specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination." (*Id.* at § 2032.320(d).)

Raw Data - Here, Plaintiff agrees to sit for the mental exam but the parties dispute the conditions upon which the exam may proceed. First, Plaintiff requests the raw testing data be turned over to Plaintiff's counsel prior to the examination. The issue of raw data has been addressed in two cases. In *Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 257, the defendant sought a neuropsychological exam, and the trial court allowed the audio recorded exam, but declined to allow the plaintiff a copy of the testing materials due to copyright infringement. The court found that there was neither express statutory authority that allowed or precluded the disclosure of the testing materials. (*Id.* at 271.) The court found that there was insufficient evidence to support copyright infringement. (*Id.* at 272-273.) The court also stated that there was no explanation for why a protective order could not be issued. (*Id.* at 274.) The court declined to address the ethical obligations of the neuropsychologist, and remanded the trial court to consider it. (*Id.* at 274-275.)

In *Randy's Trucking, Inc. v. Superior Court of Kern County* (2023) 91 Cal.App.5th 818, the court of appeals addressed this issue. The trial court ordered a mental exam and denied the defendant's request to not provide the raw data. (*Id.* at 824.) The neuropsychologist recused herself because she would not violate her professional and ethical duties to provide the raw data. (*Id.* at 824-825.) The court acknowledged *Carpenter* and that there was no statutory authority permitting or prohibiting the disclosure of raw data. (*Id.* at 834.) The court further acknowledged that the *Carpenter* court did not decide the issue regarding the examiner's ethical and professional

obligations but also recognized that the trial court had discretion to order the disclosure. (*Id.* at 835) The court further acknowledged that the trial court had broad discretion to order the disclosure. (*Id.* at 837.) The court noted the neuropsychologists concerns, but failed to explain why a protective order would not address her concerns. (*Id.* at 838.) The court also noted she failed to explain why ethical obligations would be violated based on a court order. (*Id.*) The court found that the plaintiff had a right to discovery and cross-examine the defense experts, which includes the basis for the opinion. (*Id.*) Without the raw data, the plaintiff would not be able to scrutinize the expert's opinion and effectively cross-examine her. (*Id.*)

Here, there is no evidence that City's expert is refusing to turn over raw data or making any ethical objections to doing so. Instead, the City takes issue with providing the raw data to counsel rather than to Plaintiff's retained expert. City argues that *Randy's Trucking* does not apply because it discusses the fact that the plaintiff had not retained an expert allowing the raw data to be given directly to counsel while here, Plaintiff retained an expert. This entire issue is a distinction without a difference. Neither the City nor its expert establish or explain how providing the raw data to Plaintiff's expert who will then share it with Plaintiff's counsel (which City acknowledges will happen) is any different than providing the raw data to counsel who can then share it with the expert. While *Randy's Trucking* is factually distinguishable insofar as the plaintiff had not retained an expert, such a distinction is immaterial to the ultimate takeaway from the case: "...even if [plaintiff does] retain [an expert], that expert can only assist the attorney in preparing for cross-examination; to prepare and conduct an effective cross-examination, 'the attorney must themselves possess more than a secondhand understanding of the information being scrutinized.'" (*Id.* at 838.)

Even if City's expert did submit a declaration regarding ethical obligations, the American Psychological Association's Ethical Principles of Psychologists and Code of Conduct, provision 9.04, raw testing data can be released when there is a court order to do so. Neither City nor their expert point to any ethical obligations that would actually be violated if a court order required the disclosure.

However, there is no authority or reason to grant Plaintiff's request to provide testing materials and raw data prior to the exam. City provided a list of the specific tests that will be performed. The raw data and a recording will be provided which is sufficient to safeguard against any potential issues with the testing being carried out improperly. Plaintiff is only entitled to the raw data (and recording, discussed below) after the completion of the exam.

As such, the raw data should be released to Plaintiff's counsel pursuant to a protective order, should the parties wish to enter one in order to further safeguard the raw data.

Recording and Representative Attendance -Next, Plaintiff requests permission to record the exam themselves and permission to have a representative attend the mental exam.

The statute specifically authorizes recording mental exams. It states: "[t]he examiner and examinee shall have the right to record a mental examination by audio technology." (CCP § 2032.530(a); emphasis added.) The "and" means that City's argument that its

expert is recording the exam and will provide said recording to Plaintiff is without merit – Plaintiff is entitled to record the exam himself. Moreover, case law interpreting the statute has found that the right to record applies to the entire mental examination. (*Golfland Entertainment Ctrs, Inc. v. Sup. Ct.* (2003) 108 Cal.App.4th 739, 750.) City's argument that Plaintiff may only record the clinical interview is meritless.

However, Plaintiff is not permitted to have a representative attend the mental exam. CCP § 2032.510(a) only applies to physical examinations. CCP § 2032.530, which applies to mental examinations, contains no provision authorizing attendance of an observer. Case law recognizes the special need for rapport between examiner and examinee during a mental examination so absent stipulation to the contrary, neither counsel nor court reporters may attend as their presence might hinder the examiner's ability to establish rapport with the examinee and thereby impair the effectiveness of the examination. (*Edwards v. Sup.Ct. (Santa Clara Unified School Dist.)* (1976) 16 Cal.3d 905, 910; *Vinson v. Sup.Ct. (Peralta Comm. College Dist.)* (1987) 43 Cal.3d 833, 844-845; *Golfland Entertainment Ctrs., Inc. v. Sup.Ct. (Nunez)* (2003) 108 Cal.App.4th 739, 747-748.) While the court has discretion to allow counsel to attend when needed, such where there is a showing of offensive tactics, there is no such showing here. (*Vinson, supra*, 43 Cal.3d at 845-846.)

Sanctions - Due to substantial justification and interests of justice, no sanctions will be issued.